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The Observer - Regulate short-term vacation rentals?

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What do you think of the idea of Mendocino County restricting and/or regulating so-called short-term rentals (STRs), rented mostly by vacationing tourists.

What about the right of property owners to rent housing units?

As most folks know, affordable housing has been in short supply for at least four decades in this county. State, county and city housing policies as well as local government general plans, emphasize the goal of creating, expanding, and maintaining low-to-moderate income housing.

This past September, Gov. Gavin Newsom signed what I believe is a record-setting 28 housing bills.

One of these new measures is AB 787 the “Workforce Housing Law.”

According to its author, SoCal Assemblyman Jesse Gabriel (D) explained that, “Too many communities across California have become unaffordable for ordinary folks. This legislation will help to ensure that working people — including the nurses, teachers, firefighters and grocery workers who’ve helped us through the pandemic — can afford to live in the communities where they work and serve.”

AB 787 offers an incentive for local governments to adopt a financing program that converts market-rate complexes into middle-income housing in exchange for property tax breaks.

While the bulk of affordable housing programs are aimed at poor and extremely poor households, middle-income workers like office staff, teachers, health care, government, restaurant, and retail employees, often are forced to live in communities long distances from where they work because they can’t afford or there’s no available housing closer to where they work.

In the north county, what once qualified as “affordable” housing is now oftentimes sold or rented at inflated rates, because the property can be converted to marijuana cultivation.

The Mendocino Coast’s economy is mainly fueled by tourism, so the conversion of affordable housing to short-term vacation rentals comes as no surprise.

At the BOS meeting on Nov. 16, the Supes took up the issue due mainly to some Coasties arguing for regulation, if not outright banning of STRs.

The area with apparently the greatest number of STRs are the Coastal 4th and 5th Districts, whose Supervisors are Dan Gjerde and Ted Williams, respectively.

Williams said, “I see the need for the county to re-evaluate how it regulates short-term and vacation units in residential neighborhoods. We don’t need to get into the details today. This is just to form an ad hoc (committee) to look at the issue and bring back facts and options for the full board. I want to state that my preference is not to infringe on the rights of folks in their primary residence, meaning if they have an outbuilding that’s under-utilized, say their kids use it some of the time so they can’t rent it long-term, they bring in revenue at other times of the year. I don’t want to step on their rights. But I think companies, for example a corporation in Santa Rosa buying up housing stock in our county for the sole purpose of creating quasi-hotels is a risk to our community. So I’d like to

bring back options and look at how we can better balance the rights of individuals and the rights of community."

Gjerde noted several times during the redistricting process that his 4th District saw a decrease in population to some degree because of the conversion of housing units to STRs. He called it, "one of the contributing factors to escalating the rental prices on the coast, is the loss of rentals or just options to buy a home on the coast."

Among those calling for the Supes to regulate STRs was Anderson Valley resident Kathy Borst who in a written statement to Williams, said:

Thank you for taking on this important issue. Short term rentals need to be limited, regulated and the rules strictly enforced as soon as possible. This county, and Anderson Valley in particular, is losing workers because of scarce and expensive housing. There are no rentals.

"Property prices are ridiculously high. And with STRs, people are operating businesses in residential zones. PLEASE include these things in the regulations:

"• Limit the number of STR licenses to what we have now with an eye to decreasing that number over time

""• Limit the location of STRs so they can't be in neighborhoods

"• Require on-site managers

"• Limit the number of guests and impose strict time limits on noise

"• Require adequate parking off the street

"• Impose strict fines for violations and enforce the regulations

"• Create a website showing where legally licensed STRs are located and offer an easy way to report violations

"• Limit the number of STR licenses any individual or business can have to ONE

"Please begin to solve this problem that is impacting our communities in a most negative way."

John Gorman reminded the Supes that some property owners rely on short-term rentals for income, saying, "You don't want to kill the golden goose here, just screaming, deny all rentals."

Johanna Jensen, a member of the Housing Action Team, explained her group had surveyed employees. She said, "From the employees' survey, a full quarter of them said that they are impacted by short term vacation rentals … Some of the stories they talked about were quite heartbreaking, things like, 'vacation homes are destroying our community, my employer has enormous difficulty employing and retaining employees because of the lack of housing, and vacation rentals are not contributing any skills or benefit for anybody, and the bed tax collected is only diverting from the established lodging industry. The number of vacation rentals on the coast is absolutely disgusting. People moving here from the Bay Area are driving prices up and local greedy landowners and homeowners are cashing out, displacing local service workers, including medical and first responders."

The Supes voted unanimously to create an ad hoc committee to review policy considerations for STRs and bring back a recommendation(s) for the full Board sometime in early 2022.

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